



Bill Number: S.B. 1121

Werner Floor Amendment

**Reference to: HEALTH & HUMAN SERVICES
Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes outpatient surgical centers and other health care institutions from the lead apron enforcement requirement.
2. Applies the exception to the lead apron requirement, for hospitals that use a radiation protection system, to cardiac catheterization procedures involving real-time x-ray imaging.
3. Conditions the exception to the lead apron requirement on the radiation protection system being used according to the manufacturer's instructions.
4. Limits the lead apron exception to health professionals working primarily within a radiation protection system's designated safety zone.
5. Allows the Department of Health Services to adopt rules governing radiation protection system requirements using an expedited rulemaking process.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1121
(Reference to HEALTH AND HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-420.06, to read:

4 36-420.06. Procedures involving ionizing radiation; lead
5 aprons; radiation protection systems; real-time
6 dosimeters; definitions

7 A. A HOSPITAL~~{[, OUTPATIENT SURGICAL CENTER OR OTHER HEALTH CARE~~
8 ~~INSTITUTION]}~~ THAT PERFORMS ~~{[CARDIAC CATHETERIZATION]}~~ PROCEDURES ~~{[USING~~
9 ~~IONIZING RADIATION]}~~ ~~{[INVOLVING REAL-TIME X-RAY IMAGING]}~~ MAY NOT REQUIRE
10 THAT PHYSICIANS, PHYSICIAN ASSISTANTS, NURSES OR OTHER HEALTH
11 PROFESSIONALS WEAR LEAD APRONS DURING THESE PROCEDURES IF THE PROCEDURE
12 ROOM IS EQUIPPED WITH A RADIATION PROTECTION SYSTEM ~~{[AND THE RADIATION~~
13 ~~PROTECTION SYSTEM IS IN USE ACCORDING TO THE MANUFACTURER'S~~
14 ~~INSTRUCTIONS]}~~.

15 ~~{[B. A HOSPITAL SHALL REQUIRE THAT HEALTH PROFESSIONALS WEAR LEAD~~
16 ~~APRONS DURING PROCEDURES IN PROCEDURE ROOMS THAT ARE EQUIPPED WITH~~

1 RADIATION PROTECTION SYSTEMS IF THE HEALTH PROFESSIONAL IS NOT WORKING
2 PRIMARILY IN THE RADIATION PROTECTION SYSTEM'S DESIGNATED SAFETY ZONE.}}

3 [[~~B.~~]] [[C.]] IF A HEALTH PROFESSIONAL WHO IS ~~[[AN EMPLOYEE OF A~~
4 ~~HEALTH CARE INSTITUTION]]~~ ~~[[WORKING PRIMARILY IN THE RADIATION PROTECTION~~
5 ~~SYSTEM'S DESIGNATED SAFETY ZONE]]~~ CHOOSES TO NOT WEAR A LEAD APRON BECAUSE
6 THE PROCEDURE ROOM IS EQUIPPED WITH A RADIATION PROTECTION SYSTEM, THE
7 ~~[[HEALTH CARE INSTITUTION]]~~ ~~[[HOSPITAL]]~~ SHALL REQUIRE THE HEALTH
8 PROFESSIONAL TO WEAR A REAL-TIME DOSIMETER TO MONITOR RADIATION EXPOSURE.]

9 ~~B.]~~ ~~[[~~C.~~]]~~ ~~[[D.]]~~ ~~[[THIS SECTION DOES NOT PROHIBIT]]~~ A HEALTH
10 PROFESSIONAL ~~[[MAY]]~~ ~~[[FROM]]~~ VOLUNTARILY ~~[[CHOOSE]]~~ ~~[[CHOOSING]]~~ TO WEAR
11 A LEAD APRON DURING A PROCEDURE ~~[[USING IONIZING RADIATION]]~~ ~~[[INVOLVING~~
12 ~~REAL-TIME X-RAY IMAGING]]~~ EVEN IF THE PROCEDURE ROOM IS EQUIPPED WITH A
13 RADIATION PROTECTION SYSTEM.

14 ~~C.]~~ ~~[[~~D.~~]]~~ ~~[[E.]]~~ FOR THE PURPOSES OF THIS SECTION~~[[;]]~~~~[[,]]~~
15 ~~[[1. "DESIGNATED SAFETY ZONE" MEANS THE SPECIFIC AREA WITHIN A~~
16 ~~PROCEDURE ROOM THAT IS IDENTIFIED BY A HOSPITAL AS PROVIDING PRIMARY~~
17 ~~RADIATION SHIELDING OR EXPOSURE REDUCTION.~~

18 ~~2.]]~~ "RADIATION PROTECTION SYSTEM" MEANS A SHIELDING SYSTEM THAT IS
19 DESIGNED TO PROTECT AGAINST SCATTER OR DIRECT IONIZING RADIATION EXPOSURE,
20 THAT PROVIDES PROTECTION EQUAL TO OR GREATER THAN THE SHIELDING
21 EFFECTIVENESS OF A .25 MILLIMETER LEAD-EQUIVALENT APRON AND THAT INCLUDES
22 REAL-TIME DOSIMETRY TO MEASURE RADIATION EXPOSURE TO HEALTH PROFESSIONALS
23 THROUGHOUT AN IONIZING RADIATION MEDICAL PROCEDURE.

24 <<Sec. 2. Expedited rulemaking
25 ~~[[Notwithstanding any other law, the department of health services~~
26 ~~may adopt rules necessary to implement this act using an expedited~~
27 ~~rulemaking process pursuant to section 41-1027, Arizona Revised~~
28 ~~Statutes.]]>>~~

29 Enroll and engross to conform

30 Amend title to conform

CARINE WERNER

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C: MH

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